first annual, intermediate or renewal survey identified in paragraph 1 of this

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requirements in regulations 23 and 25 of this Annex shall take place at the first annual, intermediate or renewal survey identified in paragraph 1 of this regulation or the initial survey identified in paragraphs 4.1 and 4.3 of this regulation, whichever is the first, on or after 1 January 2023; and

.8 notwithstanding paragraph 4.7 of this regulation, a general or partial survey, according to the circumstances, carried out after a major conversion of a ship to which regulation 23 of this Annex applies. The survey shall ensure that the attained EEXI is recalculated as necessary and meets the requirement of regulation 25 of this Annex.

5 The equipment shall be maintained to conform with the provisions of this Annex and no changes shall be made in the equipment, systems, fittings, arrangements or material covered by the survey, without the express approval of the Administration. The direct replacement of such

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changes shall be made in the equipment, systems, fittings, arrangements or material covered by the survey, without the express approval of the Administration. The direct replacement of such equipment and fittings with equipment and fittings that conform with the provisions of this Annex is permitted.

6 Whenever an accident occurs to a ship or a defect is discovered that substantially affects the efficiency or completeness of its equipment covered by this Annex, the master or owner of the ship shall report at the earliest opportunity to the Administration, a nominated surveyor or recognized organization responsible for issuing the relevant certificate.

Regulation 6
Issue or endorsement of Certificates and Statements of Compliance related to fuel oil consumption reporting and operational carbon intensity rating

International Air Pollution Prevention Certificate

1 An International Air Pollution Prevention (IAPP) Certificate shall be issued, after an initial

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International Air Pollution Prevention Certificate

1 An International Air Pollution Prevention (IAPP) Certificate shall be issued, after an initial or renewal survey in accordance with the provisions of regulation 5 of this Annex, to:

.1 any ship of 400 gross tonnage and above engaged in voyages to ports or offshore terminals under the jurisdiction of other Parties; and

.2 platforms and drilling rigs engaged in voyages to waters under the sovereignty or jurisdiction of other Parties.

2 A ship constructed before the date this Annex enters into force for that particular ship's Administration, shall be issued with an IAPP Certificate in accordance with paragraph 1 of this

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2 A ship constructed before the date this Annex enters into force for that particular ship's Administration, shall be issued with an IAPP Certificate in accordance with paragraph 1 of this regulation no later than the first scheduled dry-docking after the date of such entry into force, but in no case later than three years after this date.

3 Such certificate shall be issued or endorsed either by the Administration or by any person or organization duly authorized by it. In every case, the Administration assumes full responsibility for the certificate.

International Energy Efficiency Certificate

4 An International Energy Efficiency Certificate for the ship shall be issued after a survey in accordance with the provisions of regulation 5.4 of this Annex to any ship of 400 gross tonnage and above before that ship may engage in voyages to ports or offshore terminals under the jurisdiction of other Parties.

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and above before that ship may engage in voyages to ports or offshore terminals under the jurisdiction of other Parties.

5 The certificate shall be issued or endorsed either by the Administration or any organization duly authorized by it. In every case, the Administration assumes full responsibility for the certificate.

Statement of Compliance related to fuel oil consumption reporting and operational carbon intensity rating

6 Upon receipt of reported data pursuant to regulation 27.3 of this Annex and attained annual operational CII pursuant to regulation 28.2 of this Annex, the Administration or any organization duly authorized by it shall:

.1 determine whether the data has b een reported in accordance with regulation 27 of this Annex;

.2 verify that the attained annual operational CII reported is based on the data submitted in accordance with regulation 27 of this Annex;

.3 based on the verified attained annual operation al CII, determine the

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submitted in accordance with regulation 27 of this Annex;

.3 based on the verified attained annual operation al CII, determine the operational carbon intensity rating of the ship in accordance with regulation 28.6 of this Annex; and

.4 issue a Statement of Compliance related to fuel oil consumption reporting and operational carbon intensity rating to the ship no later than five months from the beginning of the calendar year, upon determination and verification pursuant to regulations 6.6.1 to 6.6.3 of this Annex . In every case, the Administration assumes full responsibility for this Statement of Compliance.

7 Upon receipt of reported data pursuant to regulations 27.4, 27.5 or 27.6 of this Annex, the Administration or any organization duly authorized by it shall promptly determine whether the data has been reported in accordance with regulation 27 and, if so, is sue a Statement of

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the Administration or any organization duly authorized by it shall promptly determine whether the data has been reported in accordance with regulation 27 and, if so, is sue a Statement of Compliance to the ship. In every case, the Administration assumes full responsibility for this Statement of Compliance.

8 Notwithstanding paragraph 6 of this regulation, a ship rated as D for three consecutive years or rated as E in acc ordance with regulation 28 of this Annex shall not be issued a Statement of Compliance unless a plan of corrective actions is duly developed and reflected
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 15 -

in the SEEMP and verified by the Administration or any organization duly authorized by it in accordance with regulations 28.7 and 28.8 of this Annex.

Regulation 7

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in the SEEMP and verified by the Administration or any organization duly authorized by it in accordance with regulations 28.7 and 28.8 of this Annex.

Regulation 7
Issue of a Certificate by another Party

1 A Party may, at the request of the Administration, cause a ship to be surveyed and, if satisfied that the provisions of this Annex are complied with, shall issue or authorize the issue of an IAPP Certificate or an International Energy Efficiency Certificate to the ship, and where appropriate, endorse or authorize the endorsement of such certificates on the ship, in accordance with this Annex.

2 A copy of the certificate and a copy of the survey report shall be transmitted as soon as possible to the requesting Administration.

3 A certificate so issued shall contain a statement to the effect that it has been issued at the request of the Administration and it shall have the same force and receive the same

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3 A certificate so issued shall contain a statement to the effect that it has been issued at the request of the Administration and it shall have the same force and receive the same recognition as a certificate issued under regulation 6 of this Annex.

4 No IAPP Certificate, International Energy Efficiency Certificate or UNSP Exemption Certificate shall be issued to a ship which is entitled to fly the flag of a State which is not a Party.

Regulation 8
Form of Certificates and Statements of Compliance related to fuel oil consumption reporting and operational carbon intensity rating

International Air Pollution Prevention Certificate

1 The IAPP Certificate shall be drawn up in a form corresponding to the model given in